Where You Are: The Protect Step, Eight of Nine, and Who Is Involved in It

The nine steps of the Medicaid Planning Roadmap, with yours marked.

When Mom is in care and the bill is being paid from her savings, “what can she keep?” can feel like the only question there is. It is one step in a longer process, and it helps to see the steps laid out with this one marked.

This page shows the whole road, where this question sits on it, and who handles which part.

Phase 1 · Assess

Understand where you are today.

1 **Understand** Care Needs → Levels of Care & Costs → Care Plan
You finish with: Immediate Care Needs Assessment

2 **Organize** Income & Assets → Ownership & Expenses → Financial File
You finish with: Financial Snapshot & Care Cost Analysis

3 **Assess** Care & Nonfinancial Eligibility → Income & Assets → Barriers & Readiness
You finish with: Medicaid Readiness Assessment

Phase 2 · Plan

Develop and implement your strategy.

4 **Plan** Barriers & Issues → Priorities & Professional Team → Written Plan
You finish with: Medicaid Action Plan

5 **Legal** Authority & Documents → Property, Trusts & Transfers → Attorney Review
You finish with: Legal Issues & Attorney Review Brief

6 **Financial** Costs & Runway → Asset Treatment & Tools → Strategy & Documentation
You finish with: Financial Strategy & Implementation Plan

Phase 3 · Secure

Secure benefits, protect assets, and maintain eligibility.

7 **Apply** Prepare → Submit → Manage
You finish with: Medicaid Application File

8 **Protect** What May Be Protected → What May Remain Exposed → What Needs Ongoing Attention
You finish with: Asset Protection Report

You are here. This step is about understanding what Mom may be able to keep, what may remain exposed, and what needs ongoing attention. Your family's part is the list of what she owns and how each thing is owned, what you've been told and by whom, and the questions still open, ready for a professional to review.

9 **Maintain** Ongoing Requirements → Changes & Renewals → Maintenance System
You finish with: Medicaid Maintenance Plan

If you arrived here first

Many families whose parent is already in care come to this question before any of the others. That is an ordinary place to start. The earlier steps are where the picture of Mom's care, her finances and where things stand with Medicaid gets built, and the conversation at this step can begin from your own list, with the gaps marked as questions.

What this step produces

On the roadmap this step ends with an Asset Protection Report: what may be protected, what may remain exposed, estate-recovery considerations, and the legal and financial questions still outstanding. It is prepared with professionals, from Mom's facts. The step is finished when the family understands what may be preserved, what may remain exposed, and what needs to be monitored or addressed later.

It is a different step from applying. Apply, the step before this one, is about the Medicaid application itself, and the federal long-term care site names the state's Medical Assistance office as the best source for information about how to qualify in your state. Protect asks about the house, the accounts and Dad's share, now and later, and several of those questions need legal judgment. The same site describes elder law attorneys as lawyers who deal daily with the issues surrounding old age. [1] [2]

What happens next

After Protect comes Maintain, the last step: the ongoing requirements, changes and renewals. Whatever this step marks as needing ongoing attention carries into that one.

Who is involved, by role

- You and your family: gathering the ownership papers, writing down what you've been told, listing your questions.
- Mom and Dad: their own account of what they own, and what matters to them about the house and the savings.
- Your Medicaid planner: reviews the list of what Mom owns with the family, explains the difference between qualifying for Medicaid now and the longer-term asset and estate questions, and prepares a summary of what may be protected, what may remain exposed and what needs ongoing attention.
- An elder law attorney or a licensed financial professional: reviews the questions about the home, a spouse, ownership, beneficiaries, trusts and estate recovery that need legal or financial judgment.
- The state Medicaid agency: makes the eligibility determination. That belongs to the Apply step.

What this page doesn't promise

How long any step takes, who will be available, or how things turn out. It doesn't say Mom will qualify for anything or that any amount will be protected, and it isn't legal, financial or tax advice. Families move through the steps at different speeds.

Ready for the next step?

You know where this question sits and who handles which part of it. The planning interview is the next thing to do from here: it asks about your family's situation and gives you a free planning report you can bring to any conversation about paying for care.

Get Your Free Planning Report ›

WHERE THIS COMES FROM

The nine steps are the Medicaid Planning Roadmap's own. The pointer to the state's Medical Assistance office and the description of elder law attorneys come from the federal long-term care site.

1. Administration for Community Living (LongTermCare information), Medicaid
2. Administration for Community Living (LongTermCare information), Will I Need a Lawyer?
